SUPREME COURT OF INDIA

APPELLATE JURISDICTION · DIVISION BENCH (2 JUDGES)

Criminal Appeal No. 11 of 2011

CNR: SCIN010000112011

Date: 05 January, 2011

Citation: (2011) 1 SCC 793

CORAM: Hon'ble Markandey Katju & Gyan Sudha Misra, JJ.

Petitioner: Kailas & Others

- VERSUS -

Respondent: State of Maharashtra

DOMAIN: CRIMINAL LAW & INDIGENOUS HUMAN RIGHTS **STATUS: Good Law (Binding Human Rights Precedent)**

JUDICIAL RATIO DECIDENDI & OPERATIVE HOLDING:

Adivasis are the descendants of the original inhabitants of India who were displaced and marginalized. Offenses against tribal women strike at the root of constitutional dignity and must be dealt with utmost severity.

STATUTES APPLIED: Section 3(1)(xi) SC/ST Act, Section 354 IPC, Section 323 IPC

DISPOSITION: CONVICTION UNDER SC/ST ACT CONFIRMED WITH STRICTEST STRICTURES

EXECUTIVE RATIO SUMMARY:

Bench led by Justice Markandey Katju denounced centuries of atrocities against Scheduled Tribes (Adivasis), affirming their status as the original inhabitants of India and mandating severe punishment for offences against tribal women.

LEXGUARD CRYPTOGRAPHIC VERIFICATION SEAL · SECTION 65B ADMISSIBLE

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